

Exhibit G

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF OHIO
WESTERN DIVISION

AMERICAN COLLOID COMPANY, :

Plaintiff, :

:

-VS-

:

No. 3:22-cv-01342

FIRE STAR ENERGY RESOURCES, :
LLC,

:

Defendant.

:

- - - - -

Videotaped Deposition of NEIL MILLER, a witness
herein, taken by the Defendant as upon
cross-examination before Lori L. Delhees,
Stenotype Reporter and Notary Public in and for
the State of Ohio, at the Regus Office, 1715
Indian Wood Circle, Suite 200, Maumee, Ohio, on
Friday, April 14, 2023, at 1:16 p.m., pursuant to
Notice.

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1
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ALSO PRESENT:

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EXHIBITS

Defendant's Exhibits
None marked.

1 VIDEO OPERATOR: We're on the record.
2 The time is 1:16. Today's date is April 14,
3 2023.

4 This is media unit No. 1 of the video
5 recorded deposition of Neil Miller in the matter
6 of American Colloid Company versus Fire Star
7 Energy Resources, L.L.C., filed in the United
8 States District Court of the Northern District of
9 Ohio, Western Division. Case No. 322-cv-01342.

10 My name is Alex Cook representing
11 Veritext. I'm the videographer. The court
12 reporter is Lori Delhees with Veritext.

13 Will counsel please identify themselves
14 for the record.

15 MR. HUNTER: Barry Hunter on behalf of
16 the Defendants.

17 MS. RATHKE: Sarah Rathke and Lauryn
18 Durham here for the Plaintiff.

19 VIDEO OPERATOR: Would the court
20 reporter please swear the witness.

21 THE REPORTER: Raise your right hand,
22 please.

23 Do you swear or affirm the testimony
24 you're about to give will be the truth and
25 nothing but the truth?

1 MR. MILLER: I do.

2 THE REPORTER: Thank you.

3 CROSS-EXAMINATION OF NEIL MILLER

4 BY HUNTER:

5 Q Okay. Mr. Miller, please state your full name
6 and residence address for the record.

7 A Oh, boy. Neil Barthalamue --

8 Q Okay.

9 A -- Miller. 601 West Holland Street, Archbold,
10 Ohio.

11 Q Okay. And where is Archbold, Ohio?

12 A The northwest corner of this state. It is
13 15 miles south of the State of Michigan and
14 25 miles east of Indiana.

15 Q Okay. And how far west of it is -- is it of
16 Toledo?

17 A 45 miles.

18 Q Okay. And how long have you lived in Archbold?

19 A My entire life.

20 Q How old are you?

21 A 45.

22 Q Okay. And you have family in Archbold?

23 A I do.

24 Q Okay. A wife and kids?

25 A I do.

1 Q Okay. Are they also full-time residents of
2 Archbold?

3 A Yes.

4 Q I assume your kids are.

5 A Yes.

6 Q Your wife as well?

7 A Yes.

8 Q Okay. What's her name?

9 A Amy.

10 Q Okay. And I'm just asking because of the jury.
11 I'm not --

12 A I got you. No problem.

13 Q Okay. Okay. Is it Amy Miller?

14 A Yes.

15 Q Okay. What was her maiden name?

16 A Deppen.

17 Q How do you spell that?

18 A D-E-P-P-E-N.

19 Q Okay. Do you have brothers and sisters in
20 Archbold?

21 A One -- well, close by. I have one of each.

22 Q Okay. Are they in the area?

23 A Yes, they're within -- my brother lives 25 miles
24 west of me, and my sister lives about 40 miles
25 southwest of me.

1 Q Okay. What's your brother's name?

2 A Max.

3 Q Miller?

4 A Yes, sir.

5 Q And your sister?

6 A Faye Escalera. E-S-C-A-L-E-R-A.

7 Q Okay. I'm done.

8 A Okay.

9 MS. RATHKE: Let's go home.

10 BY MR. HUNTER:

11 Q You work at American Colloid Company.

12 A That is correct.

13 Q We'll call it ACC.

14 A That's good. I'm good with acronyms.

15 Q And how long have you worked with them?

16 A I have worked there since March 9th of 2015.

17 Q All right. What did you do before that?

18 A Well, I was -- I worked for a burial vault
19 company. Burial vault company.

20 Q Burial vault?

21 A Yeah.

22 Q Okay. Like bury, like cemetery?

23 A Yes. Correct.

24 Q Okay. And how long did you do that?

25 A Two years.

1 Q And what about before that?

2 A I was a life-long employee of a family owned
3 trucking company. I was a mechanic, dispatcher,
4 truck driver, whatever the business required at
5 the time, except accounting because I don't do
6 that well.

7 Q And what was that company called?

8 A Fleetmat, F-L-E-E-T-M-A-T, Incorporated.

9 Q And was that in Archbold?

10 A Yes.

11 Q And what was the name of the burial vault
12 company?

13 A Behrman, B-E-H-R-M-A-N, Burial.

14 Q Okay. And what's your current position at ACC?

15 A Plant manager.

16 Q I assume of the Archbold plant?

17 A That is correct. Yes.

18 Q Okay. And have you been plant manager since
19 March 9, 2015?

20 A No, sir.

21 Q When did you become plant manager?

22 A I became production supervisor, which was a plant
23 manager without a salary title, in December of
24 '17. And then during COVID, at some point they
25 changed my title because a PAE position became

1 available.

2 Q Was there a plant manager before you?

3 A Yes. There was two.

4 Q Okay. And who were they?

5 A Steve Schroeder.

6 Q Okay.

7 A And Greg Johnson.

8 Q When did they leave?

9 A Steve Schroeder retired. There were both there
10 from the time of my employment --

11 Q Uh-huh.

12 A -- when I was being trained. Steve Schroeder
13 left January of '16, and then Greg Johnson took
14 over full time at this point.

15 Q Okay. And then when he -- has he left?

16 A Yes.

17 Q Okay. When did he leave?

18 A He was -- he transferred to the Neenah, Wisconsin
19 facility, I'm going to say, in June of '16.

20 Q Okay. Okay. And what are your day-to-day duties
21 as plant manager?

22 A The biggest -- the biggest priority that my role
23 is, is raw material from inventory from rail cars
24 to make sure all -- and coal. That's the only
25 thing that we do not receive by rail.

1 And then to verify that all of the
2 material is in spec both inbound and outbound,
3 and that the customers' orders are received on
4 time in full, as well as manage the facility with
5 the -- stay within the money that's allocated at
6 the plant.

7 Q And when you're talking about outbound, you make
8 sure that the product that you all mail are in
9 spec and proper before they go out to the
10 customers?

11 A Correct. That the COA's and filled out and such.

12 Q Just for the record, we've met a few minutes
13 before the deposition started.

14 A Yes, sir.

15 Q But my name is Barry Hunter. I represent Fire
16 Star Energy Resources.

17 A Yes, sir.

18 Q And I'm going to try to take not too much of your
19 time.

20 A All right.

21 Q Have you ever had your deposition taken before?

22 A No.

23 Q Okay. You had a chance to talk to your lawyer
24 about the kind of rules and process?

25 A I think so.

1 Q Okay. You're under oath.

2 A Yeah.

3 Q The court reporter is taking down what you say
4 verbatim.

5 A Understood.

6 Q What you say in this room could be used as
7 evidence in our court proceeding.

8 A I understood.

9 Q You got to make sure that you understand my
10 questions before answering. If you don't
11 understand, ask me to repeat or rephrase.

12 A Yeah.

13 Q If you answer without asking me to repeat or
14 rephrase, we will be forced to assume you
15 understood the question and answered accordingly,
16 good enough?

17 A Good enough.

18 Q Okay. How long have you dealt with or transacted
19 with Fire Star Energy?

20 A January of 2016.

21 Q Okay. Okay. And were they a supplier before
22 January of 2016?

23 A Yes, sir.

24 Q Okay. And you have -- where you consistently
25 kind of dealt with them from January '16 until, I

1 guess, the middle of last year?

2 A Correct.

3 Q Okay. Were you friendly with either of the
4 Joneses?

5 A Was I friendly with what?

6 Q Either of the Joneses.

7 A Dwayne, yes.

8 Q Okay. Were you social friends? Did you ever go
9 out to dinner or anything?

10 A No. I went for a tour of their tipple, the
11 processing plant where they -- where the coal
12 came from in the strip job --

13 Q Right.

14 A -- and then where they loaded the unit train.

15 Q You were always on fairly friendly terms with
16 them?

17 A Yes, sir.

18 Q Okay. Until, I guess, the end of 2020, the kind
19 of person supervising your dealings with Fire
20 Star was Laura Landau; is that right?

21 A No. Laura -- Laura Landau, I never had any
22 interactions with her. It would have been Tom
23 Reed.

24 Q Okay.

25 A Tom Reed was the buyer, but he just struck

1 the -- the contracts.

2 Q Okay.

3 A And other than that, I just dealt with Dwayne.

4 Q Was there anybody at the company higher up that
5 was kind of overseeing the management or the
6 administration of the contract?

7 A Not that I'm aware of.

8 Q What about Mr. Wentz?

9 A Mr. Wentz, I really had no interaction with him.
10 He used to -- he used to manage the electric
11 contract for the facility.

12 Q Okay.

13 A And Tom Reed was the guy. And Tom Reed retired
14 at 20 -- I think January of 2021.

15 Q Okay. So as far as you were concerned, Mr. Wentz
16 had very little to do with the contract with Fire
17 Star?

18 A I have no -- the contract that I saw with Fire
19 Star --

20 Q Uh-huh. Go on.

21 A -- it was Tom Reed only.

22 Q And I don't mean just the contract. I mean kind
23 of the administration of the contract, the
24 day-to-day dealings.

25 A That is outside of anything that I dealt with.

1 Q Okay. Who did deal with that, to your knowledge?

2 A As far as I know, it was always Tom Reed.

3 Q Okay. And after he left?

4 A Then he groomed Michael Wagner to take his role.

5 Q Okay. So as far as you know, it was Michael

6 Wagner who was handling kind of the

7 administration of the contract?

8 A Yes.

9 Q Not Mr. Wentz?

10 A I know that Mr. Wentz was Mike's boss.

11 Q Okay. And Mr. Wagner was off site. He was in

12 Houston somewhere?

13 A Yes.

14 Q Okay. Mr. Wentz was in Bethlehem, Pennsylvania?

15 A I know that for a fact.

16 Q How many employees are there at the Archbold

17 facility?

18 A Five total, including me.

19 Q Five total?

20 A Correct.

21 Q Okay. One of the things that you'll do there is

22 you make foundry casting product?

23 A That is all we do, yes.

24 Q Okay. Oh, I thought you made cat food.

25 A No. That's a -- that's a different branch. We

1 also make makeup, but I have nothing to do with
2 that.

3 Q Okay. Okay. And your customers are foundries?

4 A Every one of them, yes.

5 Q Who make molds?

6 A Correct.

7 Q Okay. And one of the ingredients that you all
8 use to make your foundry casting product is coal?

9 A Correct.

10 Q And it looks like the spec for the coal, at least
11 from Fire Star, was 13,000 BTU, one percent
12 sulfur, low moisture -- I forget the percentage.

13 A Yeah. Yep.

14 Q And as I understand it, the size spec was two to
15 one, but it was really like obtained at four to
16 two?

17 A Correct, yes.

18 Q Okay. And was there any particular reason for
19 those specs, as you understood it?

20 A Which spec are you asking about?

21 Q Well, let's go through -- the BTU, did that
22 matter?

23 A The BTU and the ash coincided with one another,
24 and the higher the BTU the lower ash.

25 Q Right.

1 A And just like if you had paper and you burned it
2 up. Like a stack of newspaper you'd get done,
3 you'd have a bunch of ash. Where if you had a
4 stick you burned up, there would be very little.

5 The ash would accumulate in the foundry
6 sand system and cause defects in the castings, so
7 they stroll -- it was like a double-edged sword.

8 Q Okay. So you didn't need the heat content, but
9 you liked the low ash?

10 A Exactly.

11 Q Okay. And as I understand it from Mr. Wentz,
12 sulfur was important. It had to be low sulfur.

13 A Yes, that is a very -- that is the most important
14 aspect of the coal.

15 Q And I learned to -- well, I guess I learned
16 before. But you don't burn the coal. You just
17 grind it up and put it in your product?

18 A Correct. Yes.

19 Q Okay. Not everybody uses coal for that purpose.

20 A Well, I know. Everybody asks me when they
21 deliver it, "Where do you burn it at?"

22 Q Right. Right.

23 So why -- why is it better to be
24 bigger?

25 A In my mill it is -- was the -- I guess a long

1 story short.

2 My mill was retrofitted. It was not
3 engineered to be a coal mill. It was engineered
4 to be a cardboard and paper grinding machine.
5 And most coal mills have direct impact to where
6 there's like zero tolerances in them. You know
7 what I'm saying? Where it's metal to metal or
8 damn near. Whereas my mill has an inch and three
9 eighths in between the wearable components, the
10 hammers, and the cutter bars.

11 Q Okay.

12 A So if it's too big to go in there, it gets
13 obliterated. If it's too small, it just
14 cavitates.

15 Q You did a good job of explaining that. Okay.

16 A I've done a lot of it over the years.

17 Q Okay. And that's what you do with the coal at
18 your plant. You have grinding machines with some
19 tolerance that grind the coal down?

20 A That is correct. Yes, sir.

21 Q Okay. And as I understand it, you have kind of
22 more of a grinding capacity than a lot of the
23 other ACC plants; is that right?

24 A I have the highest capacity.

25 Q Okay. And other plants in the system also use

1 coal for similar purposes?

2 A Every plant does.

3 Q Okay. Mr. Wentz was able to name York,
4 Chattanooga, Belvidere, Shell Rock, Neenah,
5 Albion, and Troy.

6 A Correct.

7 Q All those plants use coal to grind?

8 A There's eight of them. Yes.

9 Q Okay.

10 A Albion does not grind coal. I produce
11 100 percent of their coal.

12 Q Okay. So you get the coal in from Fire Star or
13 other suppliers, you grind it down, and then
14 deliver it to Albion?

15 A As a powder. Yes, sir.

16 Q And that's done kind of day to day all the time?

17 A Every day.

18 Q Okay. And has that been true since you've been
19 there?

20 A Yes.

21 Q And what about the other plants, they all grind?

22 A Yes, sir.

23 Q Are there other plants beyond the ones that I
24 just listed that use coal?

25 A I would have to list them to you. There's eight

1 plants total.

2 Q Okay. And we got them.

3 A Yeah. Okay. All right.

4 Q And are -- do all those plants use coal to make
5 foundry casting products?

6 A Yes.

7 Q Okay. And is it true that even in addition to
8 the Albion coal, it's not unusual for Archbold to
9 grind coal and deliver it to other plants for
10 them to use to make their products?

11 A Yeah, that's the way it's always been.

12 Q Okay.

13 A You know, we supply it. Fire Star was aware. I
14 mean, that's how I would order it because I would
15 need 350 tons a week.

16 And then depending on -- you know, you
17 forecast what your volume is, and then if there
18 was a mechanical failure or something like that,
19 then I would talk to Dwayne and bump the orders
20 up and say, hey, we need to go from there.

21 And the only other deviation from that
22 would be just in the wintertime I'd want to keep
23 the buildings full.

24 Q Okay. Okay. So -- so Archbold not only used the
25 coal it purchased from Fire Star for its own

1 requirement --

2 A Correct.

3 Q -- but also to satisfy other plants'
4 requirements?

5 MS. RATHKE: Sorry. Hold on. Object
6 to form.

7 Go ahead and answer.

8 THE WITNESS: Archbold every day for
9 years and years supplied Albion --

10 BY MR. HUNTER:

11 Q Uh-huh.

12 A -- the sole supplier.

13 Q Okay.

14 A And then every time that there was a breakdown at
15 one of the other facilities, we were the
16 contingent supplier to them, and that is how I
17 ordered the coal from Fire Star.

18 Q Okay. To cover those other plants' requirements
19 as well --

20 MS. RATHKE: The same objection.

21 BY MR. HUNTER:

22 Q -- when it broke down?

23 MS. RATHKE: The same objection.

24 THE WITNESS: Yes.

25 BY MR. HUNTER:

1 Q Okay. Are there -- well, do you know off the top
2 of your head approximately how much of the coal
3 was used for Archbold's requirements as opposed
4 to, say, Albion's requirements?

5 MS. RATHKE: Object to the form.

6 THE WITNESS: It's basically around
7 35 ton a day per plant is what I had to process
8 to stay ahead.

9 BY MR. HUNTER:

10 Q 35 -- so Albion used the same as Archbold?

11 A Just about, yes.

12 Q Troy used the same as Archbold?

13 A I can't speak to their volume. I mean, I don't
14 know. Every plant is different.

15 Q Okay. But half of the coal that you got from
16 Fire Star was for Albion's requirements; is that
17 right?

18 MS. RATHKE: Object to form and
19 foundation.

20 THE WITNESS: Close. I mean, that's --
21 we processed the coal. That's the way it had
22 been for a very long time.

23 BY MR. HUNTER:

24 Q Yes. And I know you're going to say that every
25 time I ask the question, but I --

1 Okay. So -- okay. So you've told me
2 that 35 tons a day more or less for Archbold?

3 A Correct.

4 Q 35 tons a day more or less for Albion?

5 A Correct.

6 Q What about -- like can you tell me how much went
7 to the other plants? And I know it varies from
8 time to time.

9 A Well --

10 Q Like, are there records that would show how much
11 went to the other plants in 2022?

12 A I mean, I'm sure that there might be a way to get
13 it. I don't recall that information for sure.
14 All I know is that every year -- every year since
15 I've been involved, I mean, even from the
16 trucking aspect, they've always been the
17 contingent supplier because they have the largest
18 mill.

19 Q "They" being Archbold?

20 A Yes, sir.

21 Q And I hear you.

22 A Okay.

23 Q But I'm just trying to see, is there a way that I
24 can find out how much coal went to other plants
25 beyond Albion and beyond Archbold in 2022?

1 A Probably for every year.

2 Q Okay. And how would I do that? Could I ask you
3 for the records? I'll ask your lawyer. But are
4 those records you can obtain?

5 A Well, I'm -- I am sure. I'm not the office guru.

6 Q Okay.

7 A I have a mechanical background.

8 Q Who is the office guru?

9 A Ms. Rachel.

10 Q Okay. I've seen her name, right?

11 A Yes.

12 Q She's been there a while?

13 A Yes, she has.

14 Q Okay. Do you have kind of an idea of how much
15 coal went to like Troy in 2022?

16 A Off the top of my head, no.

17 Q Okay.

18 A I know that I -- I helped supply -- Archbold
19 helped supply them while they were down, as well
20 as other plants.

21 Q Right. And what other plants did it help supply
22 when they were down in 2022?

23 A What other -- you mean helped supply Troy? I'm
24 saying that --

25 Q Oh, I'm sorry.

1 A Okay.

2 Q I hear you.

3 A Okay.

4 Q I thought you were saying that Archbold supplied
5 Troy and other plants.

6 A No. I was just saying that Archbold didn't carry
7 the full burden of Troy.

8 Q Got it.

9 Okay. So one of the plants that
10 Archbold ground coal and supplied in 2022 was
11 Albion. Another one that it ground coal and it
12 supplied was Troy.

13 Were there others in 2022, to the
14 best --

15 A Maybe hit or miss, but not of any volume.

16 Q What about Belvidere?

17 A Bel -- yes, we supported Belvidere because they
18 had a combustible dust project. And basically
19 when -- and I'm not trying to get -- go down a
20 rabbit hole.

21 But the NFPA is making it where if you
22 process combustible dust, you have to protect the
23 vessels to help the employees. And Belvidere
24 that year had that project done, and the year
25 before York had that project done, and the year

1 before Troy did. You know, it was year by year.

2 Q Okay. So I'm not sure what you're telling me
3 with regard to my question, which is --

4 A Yes, we supplied Belvidere with coal in 2022.
5 And I was saying in 2021 we supplied other plants
6 that were having the same process.

7 Q Okay.

8 MS. RATHKE: Yes. Let me just -- it
9 will probably be a good time to -- Barry is
10 right. You should focus on --

11 THE WITNESS: Okay.

12 MS. RATHKE: -- listening to Barry's
13 question --

14 THE WITNESS: Okay.

15 MS. RATHKE: -- and answering that.

16 THE WITNESS: Okay. All right. Sorry.

17 BY MR. HUNTER:

18 Q Okay. No, you're fine.

19 Okay. So in 2022 you did grind coal at
20 Archbold and deliver it to Belvidere?

21 A Yes, sir.

22 Q Do you know how much without Rachel giving us the
23 paper?

24 A Maybe a couple hundred ton.

25 Q Okay. Okay. And you're telling me that in 2021

1 you did the same for York?

2 A Yes.

3 Q Okay. Was it the same like 200 -- I mean, 200
4 tons or --

5 A I -- I don't have -- I do not recall.

6 Q Okay. Do you recall, other than York, any other
7 plants you supplied in 2021, other than Albion?

8 A Not on -- not offhand.

9 Q Okay. Okay. There's an alluminum shed that you
10 store the coal in?

11 A Two of them.

12 Q Okay. What's the capacity?

13 A 1,600 tons for both. 800 a piece.

14 Q Okay. Okay. I think I know what you're going to
15 tell me here because you've said it a few times.

16 But this notion of supplying ground
17 coal to other plants, you're telling me that you
18 told that to Fire Star?

19 A Yes.

20 Q Okay. And how do you do that? How did that come
21 upon?

22 A Well, I've told them verbally, email, text
23 messages. I mean, I talked to -- I don't know if
24 you're aware of who Cotton is. If Dwayne was --
25 it's an employee for Dwayne. And if Dwayne

1 wasn't available, that's who I was to go through.

2 Q And what's his name?

3 A I think his name is Dwayne too, but his nickname
4 is Cotton.

5 Q Okay. And do you know, is he still there, or was
6 he there when you left?

7 A Oh, he was definitely there.

8 Q Okay.

9 A He had a truck there too.

10 MS. RATHKE: Well, he hasn't left.
11 He's at ACC.

12 MR. HUNTER: I'm sorry.

13 MS. RATHKE: Okay.

14 BY MR. HUNTER:

15 Q I meant to say when the relationship terminated.

16 A I got you.

17 Q Okay. Okay. So was he a trucker who
18 independently delivered for Fire Star, or was he
19 an employee of Fire Star?

20 A I don't know the inner workings of it. I know
21 that, as far as I'm concerned, he worked for Fire
22 Star.

23 Q Is this the trucker that you had a good
24 relationship with?

25 A I had a good relationship with all of them.

1 Q I know you did.

2 He was a trucker who delivered coal
3 from Fire Star to Archbold?

4 A He had a truck that did. It was not him.

5 Q Okay. He didn't drive it?

6 A No. He had a driver in it.

7 Q Okay. Did he have an office at Fire Star?

8 A Not that I'm aware of.

9 Q He just owned the truck?

10 A Correct.

11 Q Okay. Okay. We'll look at it, but there --
12 well, we'll get to it.

13 We're there other truckers that you had
14 close relationships with who delivered the coal
15 from Fire Star to --

16 A All of them.

17 Q What other ones were there?

18 A Again, I don't know their last names. One was
19 Cheeko. One was -- I should know his last
20 name -- Brad, Randy, Tyler.

21 Q These are all different truck drivers?

22 A Yes, sir.

23 Q Okay. Different trucks?

24 A Yes.

25 Q All of them who brought Fire Star coal to

1 Archbold?

2 A Correct.

3 Q Any others?

4 A I'm sure. I would have to make a list and get it
5 to you.

6 Q Okay. You're fine.

7 And as I understand it, often times
8 when you were communicating how much coal was
9 needed, you would tell the trucker rather than
10 Tim or Dwayne?

11 A They --

12 Q That was just the way it worked?

13 A The -- if you're categorizing Cotton as the
14 trucker, yes. But Cotton was not the trucker.
15 Cotton had a truck. And I was told that if I
16 could not get in touch with Dwayne -- I had no
17 inner workings with Tim at all.

18 Q Okay.

19 A If I could not get in touch with Dwayne, I was to
20 talk to Cotton.

21 Q Okay. There's been testimony that you would
22 communicate how much coal was needed the next
23 week, or whatever, to a carrier.

24 Was that Cotton, or was that the guys
25 who drove the truck, or both?

1 A It would be both.

2 Q Okay.

3 A I mean, the way that it worked is, they could see
4 where my sheds were, and they reported the fact.

5 Q Okay.

6 A I didn't use them as a go-between.

7 Q And that was pretty much how the relationship
8 worked as far as how Fire Star knew what your
9 requirements were?

10 A I had told -- I think there was a standing
11 arrangement that I told Dwayne that I wanted
12 seven to ten 35-ton trucks per week, and if I
13 needed more, I would contact him.

14 Q Okay. Okay. And is that in writing anywhere, or
15 is that just by phone, or how did -- or is that
16 just how it was forever?

17 A I'm sure that you could go back in Rachel's
18 emails and she would say that, and that Neil
19 would arrange more shipments if needed, or
20 something like that.

21 Q But the baseline was around 10,000 10 tons each
22 year?

23 A It was always over 15,000.

24 Q Okay. I thought you told me -- maybe I misheard.
25 I thought you told me 800 tons a month.

1 A I never said that.

2 Q Okay.

3 A I mean, I don't -- I never meant to say that if I
4 said that.

5 Q We know that in 2021 there was 10,500 tons
6 delivered.

7 A That could be right.

8 Q Okay. Is that lower than normal?

9 A Absolutely.

10 Q Okay. So over the course back to 2016, it was
11 normally more than that?

12 A Always.

13 Q Okay. Except for 2021 varyingly.

14 A Well, I don't have the numbers in front of me.

15 Q Okay.

16 A All I know is that when the contract was always
17 struck, it was for like around 15 -- at least
18 15,000 tons.

19 Q Okay. Tell me -- I misheard, or maybe I just did
20 it wrong in my head, but you were telling me what
21 the normal agreement was with Dwayne.

22 A As far as truck per week?

23 Q Right.

24 A Seven to ten 35-ton trucks.

25 Q Oh, 35? Oh, I thought there were 25. There's

1 35?

2 A Yes.

3 Q Okay. And what you're telling me is that was
4 kind of the standing instruction?

5 A Yes.

6 Q Okay. If it was to vary, you would tell them or
7 tell one of the truckers?

8 A I didn't go through the truckers. I would talk
9 to Dwayne. If he had problems where he had like
10 a sulfur spike or something, then he would
11 contact me, "Hey, buddy, we're some ton short.
12 Are you all right? Could you take a smaller-size
13 coal?" or something like that.

14 Q Okay. Okay. When you say you didn't go through
15 the truckers, I thought you were telling me that
16 you did go through the truckers to tell him what
17 you needed the next week.

18 A I said that I went through Cotton. If Dwayne was
19 not available, I went through Cotton.

20 Q Okay. So you didn't tell me that it was either
21 Cotton or the other truckers too.

22 A I said the other truckers would see what was in
23 the sheds and may have reported on them.

24 Q Okay.

25 A But I didn't use them as -- I mean, I like the

1 truck drivers.

2 Q That's fine.

3 Okay. Okay. Okay. So tell me how it
4 was communicated to Dwayne or to Fire Star that
5 Archbold's requirements included the other
6 plants.

7 A If I needed more coal than the seven to ten truck
8 loads, I would call him up and say, hey, I need X
9 amount more tons because Neenah went down or
10 Belvidere went down or Troy went down. Any of
11 the plants.

12 Q Okay. Okay. And from that, he knew that from
13 time to time you were supplying the other plants?

14 A Correct.

15 Q Okay. Okay. What about Albion?

16 A Albion was always serviced.

17 Q Right. And what I'm asking -- I should have
18 spelled out the question, but how did he know
19 that?

20 A I -- I don't know. I can't do anything but
21 speculate.

22 Q Okay. Okay. Look at Exhibit 10, which was the
23 Complaint. I think it's in order.

24 A Yes, sir.

25 Q And go to the last couple pages, Exhibits 3

1 and 4.

2 A All right.

3 Q Okay. So when this email was sent to Tim and
4 Dwayne --

5 A Okay.

6 Q -- that wasn't how things normally worked, right?
7 Normally you would just say, "Hey, Dwayne, I need
8 some extra coal"?

9 MS. RATHKE: Hold on. Object to form.

10 THE WITNESS: Are you asking me if it
11 was normal for Michael to order coal?

12 BY MR. HUNTER:

13 Q Yes. Okay.

14 A No.

15 Q Okay. And the amount here was kind of eye
16 popping, wasn't it?

17 MS. RATHKE: The same objection, as to
18 form.

19 THE WITNESS: If that's what
20 forecasted.

21 BY MR. HUNTER:

22 Q Did you have -- you knew that 2,391 tons wasn't
23 going to be supplied that month, didn't you, when
24 you saw this email? I mean, didn't you know they
25 didn't have the capacity to do that?

1 A I don't know what their capacity is.

2 Q Okay. But Mr. Miller, didn't you say yourself
3 when you saw this email, well, I mean, they're
4 throwing down the gauntlet here. They're not
5 serious about this order?

6 A Well, no. I'm sure that he was very serious
7 about the letter, that he wanted that much coal.

8 Q Right.

9 Did you have a discussion with Dwayne
10 about this email?

11 A I quit talking to Dwayne in March.

12 Q Okay. Why was that?

13 A I didn't want to be involved in what was going on
14 in between Michael and him.

15 Q Okay. There was kind of a lot of tension between
16 them?

17 A I -- it appeared that way.

18 Q Yes.

19 Wasn't that a situation that existed
20 all the way back to the middle of 2021, after
21 that phone call between Dwayne and Mr. Wentz?

22 MS. RATHKE: Object to the form and
23 foundation.

24 BY MR. HUNTER:

25 Q Do you recall that phone call with Mr. Wentz

1 where Dwayne was hot about not getting paid for a
2 bunch of invoices for Chattanooga?

3 A To Wentz? I wouldn't know anything about that
4 phone call.

5 Q Okay. You weren't on that call?

6 A No. I've never been on a phone call with -- I
7 have never been on a phone call with anybody --

8 Q Okay.

9 A -- with Dwayne.

10 Q Okay. Are you aware that there was kind of a
11 riff in the relationship that happened in the
12 middle of 2021 over nonpayment by ACC for
13 primarily Chattanooga coal?

14 A I didn't know that there was Chattanooga coal,
15 but I did know that there was an issue with
16 payment.

17 Q Okay. And that caused a riff between your
18 companies, didn't it?

19 A Between ACC and -- yes, but not in between me and
20 Dwayne.

21 Q Okay. Didn't you learn that as a result of that
22 conversation that ACC was going to quit dealing
23 with Fire Star as soon as they could?

24 A Honestly, no.

25 Q Okay. Okay. You weren't told that?

1 A No. I -- no.

2 Q Okay. You weren't told to kind of back off on
3 your communications with Dwayne?

4 A I was told to no longer have communications with
5 Dwayne from Michael.

6 Q But I'm -- and I -- and I'll ask about that, but
7 I'm going back to the spring or the summer of
8 2021.

9 A I understand what you're saying.

10 Q And that didn't happen back then?

11 A Repeat the question.

12 Q Weren't you told to stop talking to Dwayne all
13 the way back into the middle of 2021 after that
14 blow up over the payments?

15 A I was told to quit talking to Fire Star
16 January 1st of 2021, when Michael Wagner took
17 over.

18 Q Okay. I'm getting confused.

19 You were told not to talk to Fire Star
20 in January of 2021?

21 A Correct.

22 Q And why was that?

23 A Because I wasn't in charge of raw material
24 procurement. Michael was.

25 Q Okay. You continued to talk to Dwayne anyway?

1 A I did.

2 Q But you were told not to?

3 A I did.

4 Q You were?

5 A What's that?

6 Q You were told not to?

7 A Not by Eric, but by Michael.

8 Q And why -- did he not like your relationship with
9 Dwayne and Fire Star?

10 A Oh, I'm fairly certain Michael did not.

11 Q And why was that?

12 A I think it -- it stripped control from him.

13 Q Okay. Did Michael kind of express disapproval
14 about Fire Star as early as the beginning of
15 2021?

16 A Not that I can recall.

17 Q Okay. When, as you understood it, did management
18 become disenchanted with Fire Star?

19 MS. RATHKE: Object to form and
20 foundation.

21 THE WITNESS: Management being?

22 BY MR. HUNTER:

23 Q Michael. Eric.

24 A March 8th, probably.

25 Q Of?

1 A 2021.

2 Q And what happened on March 8, 2021?

3 A Test results came back high in sulfur.

4 Q And ever since then they were unhappy with Fire
5 Star?

6 A I think that they always had a chip on their
7 shoulder because of the sulfur.

8 Q Okay. And they didn't like how Dwayne and Tim
9 reacted to the nonpayment either, did they?

10 MS. RATHKE: Object to form and
11 foundation.

12 THE WITNESS: I -- I honestly don't
13 know --

14 BY MR. HUNTER:

15 Q That's fine. Okay.

16 MS. RATHKE: No. No. No. Go ahead.
17 You need to finish your answer for the record.
18 He's not supposed to interrupt you. "I honestly
19 don't know."

20 THE WITNESS: I honestly don't know
21 anything about the -- I submit the invoice and it
22 gets paid, and I don't know anything about what
23 corporate does with payments. I submit it and
24 then it goes through PayWiz.

25 BY MR. HUNTER:

1 Q Are you done?

2 A Yes.

3 Q But you knew in the spring of 2021 that Fire Star
4 wasn't getting paid. I mean, Dwayne didn't hide
5 that from you, right?

6 A It was probably -- it was well after that that I
7 became aware.

8 Q Okay.

9 A Probably in May.

10 Q And Dwayne was upset by that, right?

11 A I imagine, yes.

12 Q And at this point Mike Wagner had told you don't
13 talk to them anymore?

14 A It had been long before that.

15 Q Okay. Okay. You don't recall -- oh, okay.

16 You, in fact, stopped talking to Dwayne
17 in March of 2022?

18 A It would have when this 3/18 -- 3/8/22 email,
19 whatever, Michael Wagner and myself --

20 Q Wait. Wait. This is a June --

21 A Go down.

22 Q Sorry.

23 A We're on Exhibit 3, right?

24 Q You're right. Go on.

25 A When that March 8, 2022, and maybe it was the

1 7th --

2 Q Go on.

3 A -- there was a phone call in the evening between
4 Michael Wagner, myself, Dwayne, and Tim Harris.
5 And after that phone call, I was put in the
6 middle, and I didn't have anything else to do
7 with it.

8 Q Okay. Okay. And that was because your bosses
9 were mad about the fuel surcharge?

10 A No. It's because I didn't want to be put in the
11 middle. They were jeopardizing a relationship
12 that I had that I had no control over. They were
13 using me to foster communication, and I just
14 bowed out.

15 Q Okay. Who is "they"? Mr. Wagner?

16 A Yes.

17 Q Wanted you to be a go-between with Fire Star?

18 A Correct.

19 Q I thought he didn't want you to talk to Fire
20 Star.

21 A Things had changed.

22 Q Okay. Okay. And what did he want you to tell
23 Fire Star?

24 A Nothing. He just wanted me to foster the
25 communication.

1 Q Okay. Were they upset about the fuel surcharge?

2 A Who?

3 Q Wagner.

4 A I don't think that they were.

5 Q Well -- well, then what were you referencing in
6 the 3/8/22 email?

7 A That's when I quit talking to them.

8 Q Okay.

9 A The phone call. It had nothing to do with the
10 email. I don't even know if I saw the email on
11 3/8.

12 Q Okay. And after that, the communications were
13 with anybody? Did Wagner talk to them, or nobody
14 talked to them?

15 A I guess -- well, I know that Wagner claimed that
16 he talked to them.

17 Q Do you think he did?

18 A Probably.

19 Q So you know that the 2,391 tons of coal was half
20 or virtually half for Troy, right?

21 MS. RATHKE: Object.

22 THE WITNESS: No. That -- I should
23 have had that volume already at that point in the
24 year.

25 BY MR. HUNTER:

1 Q Okay. So -- but look at Exhibit 20. 20.

2 A In here?

3 Q Yes.

4 MS. RATHKE: Did you say 20, 2-0?

5 MR. HUNTER: I'm sorry.

6 MS. RATHKE: He just has to figure out
7 what he wants.

8 BY MR. HUNTER:

9 Q Sorry.

10 A No, it's all right.

11 Q 23 -- it shows that that 2,391 tons of coal was
12 made up of approximately half Archbold's use and
13 half Troy's use, right?

14 A I could run the numbers, but yes, probably.

15 Q Okay. And did the Archbold's use include the
16 Albion use?

17 A Correct.

18 Q Okay. But what this email told Fire Star was,
19 "The rise in tonnage follows our
20 recent rise in demand at the facility for
21 its products."

22 I'm sorry. I'm back to the Complaint.
23 I'm back to Exhibit 10.

24 A The No. 3?

25 Q Yes.

1 A Exhibit 3?

2 Q Yes.

3 A Okay. All right.

4 Q So you see how it doesn't say that the rise in
5 tonnage was because of the Troy outage? It says
6 it's because of a recent rise in demand at the
7 facility for its products, do you see that?

8 MS. RATHKE: Objection to foundation.

9 THE WITNESS: I'm sorry. Please -- I
10 read what -- what paragraph do you want me to
11 read?

12 BY MR. HUNTER:

13 Q Well, there's three paragraphs.

14 A Yes.

15 Q And I'm looking at the second.

16 A "The rise in tonnage follows our
17 recent rise in demand at the facility for
18 its products. We've agreed" --

19 Q That's it. Okay?

20 A Okay.

21 Q There was no demand at the facility for its
22 products, right?

23 A No, there was.

24 Q Okay. And what was that?

25 A It was to process coal --

1 Q Okay.

2 A -- for the other plant.

3 Q Okay. So what -- so the -- when it says a,
4 "recent rise in the demand at the
5 facility for its products,"

6 you read that to mean the coal?

7 A Well, that's -- that's how I read it. It says
8 2,391 tons of coal.

9 Q Right.

10 And that's how you read it at the time?
11 That when you read that it was a demand at the
12 facility for its product, didn't that suggest
13 that it meant the products that your facility
14 produced for its customers as opposed to grinding
15 coal for Troy?

16 A I would think that it would be. When I read
17 that, I read that as it is an increase of
18 products that Archbold plant produces.

19 Q Okay. And you're counting the products that you
20 produce as grinding the coal?

21 A Yes, sir.

22 Q Okay. You don't sell coal to customers, ground
23 coal, right?

24 A Not typically.

25 Q Okay. You process it and put it into the foundry

1 products, right?

2 A And I process it every day for other plants.

3 Q Right. Right.

4 Okay. And you think that when Tim and
5 Dwayne got this email they knew that this was
6 talking about announced to Troy?

7 A I have no idea what they thought when they read
8 it.

9 Q On Exhibit 4 --

10 A Yes, sir.

11 MS. RATHKE: Within Exhibit 10.

12 BY MR. HUNTER:

13 Q It says,

14 "We expect other tonnage requirements
15 will be 300 tons per week from August 22
16 to the end of the year."

17 Do you see that?

18 A Okay.

19 Q Do you know what that -- how they came up with
20 that 300 tons?

21 A No. That's not even enough.

22 Q Do you know if that included the Troy usages?

23 A No, that would not have included the Troy usages.

24 Q Okay. Okay. Look at page 1, paragraph 3 of the
25 Complaint, Exhibit 10. It says,

1 "The Parties had amicable history
2 until March of 2022."

3 Do you see that?

4 A Yes, sir.

5 Q Was that true, that ACC and Fire Star had an
6 amicable relationship until March of 2022?

7 A I know I did.

8 Q Right. But I don't think it's referring to you.

9 MS. RATHKE: Well, he's answering what
10 he knows.

11 THE WITNESS: I -- I -- when it goes
12 above me, I don't know what Aric or Michael or
13 anybody else's relationship is.

14 BY MR. HUNTER:

15 Q Okay. Okay. Well, you stopped talking to Dwayne
16 in March of 2022 because you didn't want to be
17 put in the middle of your bosses' dealings with
18 them, right?

19 A I didn't -- I didn't want to be involved in coal
20 procurement come March of 2022.

21 Q And why was that?

22 A Because it was all over the road.

23 Q How do you mean?

24 A I used to call -- I used to get coal, and then I
25 didn't.

1 Q Through March of 2022, were there any issues with
2 regard to Fire Star's delivery, say, to the --
3 the amount of coal they were delivering?

4 A Volume?

5 Q Uh-huh.

6 A Correct. Yes, there were shortages.

7 Q Okay. And when did those start?

8 A March of 2021.

9 Q March of 2021?

10 A Correct.

11 Q Okay. And are you talking about a quality issue
12 or actually volume shortages?

13 A No. I'm -- the moment that the sulfur thing hit,
14 March 8th or whatever it was in 2021, whenever
15 the sulfur situation happened, from that day
16 forward I never got the tonnage that I needed
17 from Fire Star.

18 Q Okay. Did you tell them that?

19 A Yes.

20 Q How did you tell them that?

21 A Emails. Phone calls. Texts messages.

22 Q Okay. I haven't seen an email or a text message
23 that says that until January of 2022.

24 You're saying that there are emails and
25 text messages that communicate that we need X and

1 you've only delivered Y?

2 A I don't know that it would say X and Y. But I
3 would be like I haven't got what I needed.

4 Q Okay.

5 A What is -- what's your plan.

6 Q Okay.

7 A And then -- go ahead.

8 Q Did you ever send them an email saying, "My
9 requirements are X this month and you only
10 delivered Y, and I need you to make this up"?

11 A I did. I don't know what -- on what date it was,
12 and I know that Rachel did as well when she would
13 submit the invoices via email.

14 Q To your knowledge, have all of the emails and
15 text messages exchanged between ACC and Fire Star
16 during this period been produced?

17 A I did very, very, very -- I -- sure. But I did
18 very little communication with them via email.
19 It was always on the phone.

20 Q Okay. But you --

21 A Not always on the phone, but primarily on the
22 phone if they answered.

23 Q But when you're telling me there are emails
24 telling them "We need X amount of coal and you've
25 only delivered Y," are you certain there are such

1 emails from you?

2 A Yes.

3 Q Okay. In 2021?

4 A No. I don't know the date.

5 Q Okay.

6 A I never used email to file a grievance with them
7 because I never had a reason to --

8 Q Okay.

9 A -- until after 2022.

10 Q Okay. So you were generally satisfied with their
11 performance until 2022?

12 A I was satisfied until March of 2021, up to the
13 sulfur spike on 3/8. 3/8 of 2021. And then
14 after that, I didn't get the tonnage that I
15 needed.

16 Q But never communicated that to them?

17 A I did. I just didn't do it in an email form that
18 I can guarantee.

19 Q Okay. Well, tell me how you did it.

20 A I would -- I would call Dwayne.

21 Q Uh-huh.

22 A I may have texted him. I don't know dates.

23 Q Okay.

24 A But if I did not get ahold of him, there was
25 times where I would text Cotton. There was times

1 that I would text both of them --

2 Q And what -- I'm sorry. Go on.

3 A -- and I would say, "Hey, I need X amount of
4 coal, and I'm not getting it."

5 Q Okay.

6 A And I mean, I -- I can tell you, thinking back in
7 November 2021, I'm certain that I sent an email
8 with, I believe, pictures that said current
9 state, I need coal, whatever.

10 Q Okay. But as far as telling them what your
11 requirements were and how short they were of
12 those requirements, did you ever tell them that?

13 And I'm distinguishing. I'm saying
14 that all coal suppliers and coal takers day to
15 day they're short, they're long, they need coal.
16 But did you ever tell them at the end of the
17 month "Hey, you didn't deliver what you were
18 supposed to this month"?

19 A It would have been weekly.

20 Q Okay.

21 A It would have been weekly.

22 Q Okay.

23 A And at the end of the day historically they knew
24 what I consumed.

25 Q And what was that?

1 A Seven to ten trucks a day, unless I bumped it up.

2 Q Okay. In 2021 --

3 A Seven to ten trucks a week. Pardon me.

4 Q In 2021 they delivered 10,000 tons, 10,500 tons
5 to you.

6 A Okay.

7 Q And according to the records, you consumed around
8 12,000 tons. I'm representing that to you.

9 A You're telling me that?

10 Q Yes.

11 A Okay.

12 Q And I think you're telling me that was an unusual
13 year. That was unusually low?

14 A Absolutely, if that's what you're saying.

15 Q Okay.

16 A I mean, if that's what it reflects, 12,000.
17 I -- that doesn't make sense to me.

18 Q Okay. Look at Exhibit 1.

19 A Okay.

20 Q So this was -- this is a big Excel spreadsheet.
21 I don't know if you know what it is.

22 A Yes.

23 Q Oh, you do?

24 A It's the coal -- it's the coal stockpile.

25 Q Okay.

1 A Yeah.

2 Q Okay. So I got the number from that.

3 A Okay.

4 Q And what it showed more or less was that around
5 12,000 tons was used and 12,000 tons was
6 delivered in 2021.

7 A Okay.

8 Q Is that generally an accurate depiction of what
9 you all used and delivered and purchased?

10 A I will say that '20 and '21 because of COVID --

11 Q Okay.

12 A -- I can't say what it was.

13 Q Got it.

14 A But I can tell you that the head -- what sticks
15 in my head, as in if somebody asked me what are
16 you going to do, it's 15,000 to 18,000 tons --

17 Q Okay.

18 A -- per year annually.

19 Q When -- on those -- in Exhibit 1 on those charts,
20 when it shows coal out or coal used --

21 A Yeah.

22 Q -- that includes the coal that went to Albion and
23 to Troy and to Belvidere, correct?

24 A No. That -- the -- that is what we've processed,
25 production.

1 Q Right.

2 A That would be the bulk shipments as well as all
3 of our blends.

4 Q Okay. So isn't what I'm saying correct, that
5 that would include not only product that was used
6 at Archbold, but also there was product that
7 ground had sent out to Troy or Albion?

8 A Yes.

9 Q Okay.

10 A Correct.

11 Q Okay.

12 A I didn't understand the question.

13 Q No. I'm sure I didn't ask it right.

14 Was it a genuine quality issue in March
15 of 2021, to your knowledge?

16 A At the Archbold facility, no.

17 Q Okay. So it wasn't a problem at the Archbold
18 facility?

19 A I have lab results that said that one of the
20 samples that we sent in was high in sulfur and
21 the Chattanooga facility had some as well.

22 Q Okay. But you just told me it wasn't a problem
23 in Archbold.

24 A I said I had the lab result that said it was.

25 Q But it really wasn't, right?

1 A I had the lab result that said it was. I
2 can't --

3 Q Why did you tell me two minutes ago that it
4 wasn't a problem? I'm just --

5 A What I'm going to say is that after the initial
6 defect that was sent to the lab and was given to
7 me that I take as gospel, I had the machine in
8 Archbold, the legal sulfur analyzer repaired.
9 Spent money on that and tested the coal that was
10 in Archbold, and it was not out of spec.

11 Q Okay. So that's all I was asking.

12 A No. You asked me if it was out of spec. And the
13 lab -- I have to go by what the lab tells me.

14 Q Okay. But you found out from your test
15 afterwards that it wasn't out of spec, right?

16 A Correct.

17 Q Okay. And as far as Chattanooga, you don't know
18 one way or the other?

19 A I have no idea.

20 Q Okay. Okay. So look at Exhibit 12 on page 1.

21 A Yes, sir.

22 Q This is your December 16, 2021 email.

23 A Okay. Yes, sir.

24 Q Okay. So did Michael Wagner like get upset with
25 you when you sent this?

1 A No.

2 Q Okay. Because I thought he had told you to stop
3 communicating with them.

4 A Mike Wagner wasn't getting any response from
5 them.

6 Q Okay. So he wanted you to reengage with them?

7 A I won't say that he did. I will say that I did
8 with him on copy.

9 Q Okay. But he was okay with this? He was okay
10 with you communicating with them?

11 A I never heard anything -- I think he was worried
12 about me saying something and him not knowing.

13 Q Okay. So you're telling Fire Star you needed
14 400 tons a week moving forward, right?

15 A Yes.

16 Q And other than telling them kind of I want seven
17 to ten trucks a week over the phone, to your
18 knowledge, there's no other written communication
19 telling them how much coal you required before
20 December of 2021, is there?

21 MS. RATHKE: Object to form and
22 foundation.

23 THE WITNESS: I would say the -- I
24 don't say that I have anything like this. But if
25 I required 18,000 tons and didn't get that, you

1 know -- they were aware that there was always
2 variables in Archbold's needs.

3 BY MR. HUNTER:

4 Q Uh-huh.

5 A And they were aware that I was a contingent
6 supplier of the other plants. I mean, it --
7 there's no doubt in my mind that they weren't
8 aware of that.

9 And here I'm just like I'm not
10 saying -- there was complications. I wasn't
11 getting what I needed. And if I throw out there
12 seven to ten trucks, then I don't know.

13 Here I quantified --

14 Q All right.

15 A -- what I need every week.

16 Q This was double what they had been supplying
17 throughout 2021, right?

18 A Correct.

19 Q Okay. So you would owe -- you had upped the
20 requirement for 2021 by two times in this email?

21 A I didn't get what I needed the entire year. I
22 mean, I asked for that much every week.

23 Q How did you ask for that much every week?

24 A Verbally.

25 Q Okay. So not only did you ask them for seven to

1 ten trucks, and you said and I need more than
2 that?

3 A On weeks that I needed it, yes, sir.

4 Q Well, you just told me every week. It wasn't
5 every week, right?

6 A What seven to -- what are you asking me?

7 Q Did you ask for 400 tons of coal every week?

8 A There was weeks I'm sure that I did.

9 Q Okay. There's not a single email before
10 December -- I'm sorry -- before January of 2022
11 where anybody is complaining to Fire Star about a
12 shortfall in deliveries.

13 A There's nothing from Michael? That's a question.

14 Q Do you know of any?

15 A No, sir.

16 Q Okay.

17 A I --

18 MS. RATHKE: Go ahead. I think he was
19 still talking.

20 THE WITNESS: No. What -- the thing
21 that -- that -- the thing that I don't know as
22 being embraced or whatever else, is that Fire
23 Star and Neil Miller were never literal. It was
24 never, "We got to document this. We got
25 problems. We got" -- for years and years and

1 years I called, I ordered what I wanted, and I
2 always got it, until March of 2021.

3 BY MR. HUNTER:

4 Q Okay. Okay. And for whatever reason, there was
5 never any communication to them saying, "Hey,
6 guys, I've ordered more and you're not delivering
7 it"?

8 MS. RATHKE: Objection to foundation.

9 THE WITNESS: At the end of the day, I
10 wasn't even supposed to be talking to them.

11 BY MR. HUNTER:

12 Q Okay. So you're telling them here that the
13 reason for the increase --

14 A Yes, sir.

15 Q -- isn't because of any uptick in Archbold's
16 requirements. It's because other plants need
17 coal, right?

18 A Archbold's requirements have always been the
19 contingent supplier of it, and Fire Star was
20 aware that I ground coal for other facilities.

21 Q And in this case you're saying that the 400 tons
22 is going to be used to support not only Archbold,
23 but also Albion, Belvidere as well as Troy,
24 right?

25 A That is correct. Yes, sir.

1 Q Okay. And you're telling them if other plants
2 have issues, you'll include that in a further
3 increase, right?

4 A Absolutely.

5 Q Okay. And you're telling us that that's
6 something that they had supplied in the past,
7 right?

8 A Always.

9 Q Okay. Well, apparently not in 2021, right,
10 because they only supplied 10,500 in 2021?

11 MS. RATHKE: Object to foundation.

12 BY MR. HUNTER:

13 Q What response, if any, did you get to this email?

14 A Probably nothing.

15 Q Okay. Why do you say that?

16 A Well, I just don't think so. This was an email
17 that I sent out for just to document that if I
18 ran out of coal, I, as well as Michael Wagner,
19 was attempting to get more.

20 Q Okay. And you felt that was important to do, to
21 document it?

22 A At this particular point, yes.

23 Q Did Wagner tell you to send it?

24 A Absolutely not.

25 Q Okay. Until that point you didn't think it was

1 important to document it?

2 A I wasn't going as backwards as fast.

3 Q Okay.

4 A I didn't feel the need that I had to document it.

5 Q Go to Exhibit 13.

6 A Yes, sir.

7 Q Look at the second page, which is Bates ACC401.

8 A Yes, sir.

9 Q It's from Mike Wagner to a bunch of people giving
10 you kudos for your non-owner connections at
11 Fire Star to help us get coal?

12 A That is correct.

13 Q What is that? What's that talking about?

14 A Well, Belvidere was in the need of coal, and
15 Dwayne was not able to -- I couldn't get ahold of
16 him. I tried. I could not get ahold of him, so
17 I called Cotton, who is a non-owner but owns a
18 truck, and I told him that, "Hey, Belvidere needs
19 coal. I'm not" -- and I had Jennifer Freer on
20 the phone with me too.

21 Q Who?

22 A Jennifer Freer.

23 Q Who is that?

24 A She's the logistics manager. She would be the
25 one that would pay for the freight.

1 Q Okay.

2 A And so it was Cotton, myself, and Jennifer. And
3 I said, "Hey, does Dwayne have any coal he wants
4 to sell?" I'm not talking about out of my
5 contract. I'm talking about spot buy for
6 Belvidere.

7 And Cotton immediately jumped on it,
8 yes, it's going to happen. He asked the address,
9 he asked the receiving hours and everything else,
10 and it was all a go until Dwayne found out about
11 it.

12 Q And then what happened?

13 A Dwayne shut it down.

14 Q Okay. But there was deliveries of Fire Star coal
15 to Belvidere.

16 A Not from Cotton.

17 Q Okay. Mr. Wentz testified that there was like
18 271 tons of coal that was delivered from Fire
19 Star direct to Belvidere.

20 A I do -- you're -- direct. You mean as in not
21 going to Archbold, and then being -- I don't know
22 the number.

23 Q Did you know that?

24 A Did I know? Yes.

25 Q Okay. And isn't that what they're kind of

1 congratulating you for?

2 A No. That happened after that.

3 What happened there is, I'm being
4 congratulated to allegedly making something work
5 with Dwayne's right-hand man who owns a truck.
6 And they were willing to get coal to Belvidere
7 at -- without Dwayne's permission.

8 Q Right.

9 A They were going to sell that product to them at a
10 different cost not coming out of Archbold's
11 contract. Just spot buy coal for Belvidere.

12 Q Who -- who was going to sell it without Dwayne's
13 permission?

14 A Cotton.

15 Q So how was Cotton going to get the coal?

16 A He runs the loader and has the truck.

17 Q So Cotton was going to take Fire Star's coal
18 without permission and sell it to you on spot?

19 A I'm sure that he was going to have Dwayne's
20 permission until he found out about it.

21 Q Okay.

22 A I'm guessing.

23 Q What about the 270-some-odd tons of coal that was
24 shipped from Fire Star to Belvidere?

25 A I don't know about the tonnage. I know the

1 truck -- I know that a lot of coal went to
2 Archbold and got unloaded and reloaded and taken
3 to Belvidere.

4 Dwayne told me that if -- that I
5 couldn't use his truck, but whatever I did with
6 my coal was my business. Because after he shot
7 down Cotton's ordeal, he sat there and he goes,
8 "You don't understand how hard coal is to
9 acquire. The market is volatile right now."
10 Whatever else.

11 And I sat there, and I told him, I
12 said, "I'm not asking you to give him my coal."
13 You know, the price of coal was through the roof.

14 Q Right.

15 A "And I'm not asking you to give another supplier
16 my coal at that contracted price."

17 Q Right.

18 A And he sat there, and he goes, "Why would you use
19 my truck? You can't use my truck. I need my
20 trucks. You dump it on the ground. You want to
21 reload it and do something with it, that's your
22 prerogative."

23 Q Okay. Okay. Are you saying that you were not
24 aware of coal being shipped from Fire Star direct
25 to Belvidere without either of the Joneses'

1 permission or knowledge?

2 A Repeat it one more time. I want to dissect it
3 what you're asking. I'm sorry.

4 Q Are you saying that you are not aware of coal
5 being shipped direct from Fire Star to Belvidere
6 without Dwayne's or Tim's knowledge?

7 A Well, I had no thing with Tim ever. And Dwayne
8 told me that what I did with my coal was my
9 business. I just could not use his truck.

10 Q Okay. Go to Exhibit 21.

11 A I'm getting warmer here, sir. All right.

12 MS. RATHKE: Out of order.

13 THE WITNESS: Sorry.

14 MS. RATHKE: No, don't --

15 THE WITNESS: All right.

16 MR. RATHKE: Got it.

17 BY MR. HUNTER:

18 Q And let's start on the second page of this
19 exhibit, 377.

20 A Yes, sir.

21 Q Okay. And it's an email from you to Tim Harris
22 and various other people, including Aric Wentz.

23 A Okay.

24 Q Okay?

25 A Yes, sir.

1 Q And could you read the second paragraph into the
2 record?

3 A You're just saying the one that starts with
4 "Mike"?

5 Q Yes.

6 A "Mike, as I have said before, Fire Star
7 has no clue that they are supplying
8 Belvidere. So they wouldn't be able to
9 load more than one load a day. I think it
10 would be great if you could strike a deal
11 with Fire Star for help that way. I don't
12 want to compromise my relationship with my
13 primary supplier of coal."

14 Q That's good. That's good.

15 A Yes.

16 Q Okay. So when you say that Fire Star has no clue
17 they are supplying Belvidere, what -- what do you
18 mean by that?

19 A I mean that Dwayne gave me permission to do
20 whatever I want with my coal, but he didn't know
21 each and every aspect of that. And that I wanted
22 Michael to build that relationship beings how I'm
23 not allowed to talk to them anymore.

24 Q Was this coal shipped direct from Fire Star to
25 Belvidere?

1 A It came through Archbold.

2 Q It came through Archbold.

3 So there was no coal that you know of
4 that was shipped from Fire Star direct to
5 Belvidere without the Joneses' knowledge?

6 A It all went through -- as far as I know, it all
7 went through Archbold. And there would be
8 freight bills to coincide with that.

9 Q Okay. So -- okay.

10 So when you say,

11 "Fire Star has no clue they are
12 supplying Belvidere,"

13 you just mean the situation like if you're
14 telling us always exists, where coal goes to
15 Archbold and then Archbold uses it to supply
16 other plants?

17 A Not the unprocessed coal.

18 Q So you're saying this is different in that in
19 this case, the coal is going to go to you, and
20 you're going to deliver it unprocessed to
21 Belvidere?

22 A That is correct.

23 Q Okay. And you felt like you needed Tim's -- you
24 needed Dwayne's permission for that?

25 A I didn't think I needed anything.

1 Q You just told me that you wanted to make sure
2 that Dwayne was okay with it.

3 A No. I wanted him to cut me out of the middle. I
4 wanted Michael to get it to go from Bel -- from
5 Manchester to Belvidere.

6 Q Why did -- why did you need anybody to do that?
7 You've been telling us that that's gone on for
8 the past five years?

9 A Not chuck coal.

10 Q What difference does it make? What difference
11 does it make to Fire Star whether it's chunk coal
12 or processed coal that's being used to supply
13 Belvidere's needs?

14 A That would be a question for them.

15 Q Dwayne never agreed for the coal to go to
16 Belvidere?

17 A He told me what I could do -- what I did with my
18 coal was my business. I wasn't to use his truck.

19 Q Okay. And what you're telling us is that -- and
20 what that meant is that rather than continue to
21 do what you've done for years with his knowledge,
22 which was take his coal, grind it down and send
23 it to other plants, he was telling you, "And in
24 addition to that, you can take my coal, take it
25 into Archbold, and sell it in chunks to other

1 plants"?

2 A What he told me was that I could -- he wasn't
3 going to give me coal to do that with his trucks.
4 If you want it done, arrange a transportation
5 yourself.

6 Q Okay. But he would send it to Archbold, right?

7 A Correct.

8 Q Okay. And then you could do what you wanted with
9 those -- with that coal?

10 A That's what he said.

11 Q Which is what you say he had agreed to for five
12 years?

13 A No. He knew that he was a supplier of coal that
14 was being ground up and being processed. I tried
15 getting -- I reached out to Cotton to get the
16 coal moved directly there. Cotton said good
17 deal, problem solved. And then that -- he could
18 have got market value, whatever.

19 And then Cotton got back with me and
20 said, "Hey, it's a no go," whatever else.

21 So then I thought that I could talk to
22 Dwayne and smooth things out. And when I talked
23 to him, he told me that I wasn't using his trucks
24 to do it.

25 Q Okay.

1 A If I wanted it to happen, make it happen out of
2 Archbold.

3 Q Okay. And this is after you told me you never
4 talked to them again, right?

5 A Correct -- no. I said March of --

6 Q So this is in April of 2022.

7 A No. I see what you're saying. Yes.

8 No, I did say that I didn't talk to him
9 after March. I thought that was the after the
10 phone call with the fuel surcharge. It doesn't
11 make sense to me honestly.

12 Q But you do recall talking to him in April about
13 this issue?

14 A Well, if that's the date, yes. I don't remember
15 the date on it.

16 Q But it was sometime around this time, whether it
17 was March or April, that you had no further talks
18 with him?

19 A Yes.

20 Q Okay. And you haven't talked to him since?

21 A Nope.

22 Q Okay. Did Dwayne call you when -- you were aware
23 that payments slowed down again in March, April,
24 and May of 2022, correct?

25 A I do need to -- I do need to change something.

1 Q That's fine.

2 A I talked to him -- I did. I totally forgot. May
3 like 27th, 28th, something like that, right
4 before Memorial Day, I did call Dwayne. And I,
5 like I said, I admit that I said I didn't talk to
6 him anymore.

7 Q That's fine.

8 A And I said, "What -- what is the deal? Come on,
9 we're friends. What's the deal?"

10 And he sat there, and he said, "I know
11 what you need to live. I'm not going to give you
12 any more than that because why I would go further
13 in the hole. There's invoices that weren't
14 paid."

15 Q Right.

16 So is that how you found out about the
17 payment issue, or were you told about it by
18 others as well?

19 A No, it would have been only that.

20 Q Okay.

21 A And nobody within -- nobody within my
22 organization is aware of that phone call that --
23 I believe.

24 Q Okay. Did that make sense to you? Could you
25 understand why he didn't want to continue to ship

1 if he wasn't getting paid?

2 A I mean, I think that's logical in every aspect of
3 life.

4 Q Do you know why he wasn't getting paid?

5 A I do not.

6 Q Okay. And you're telling me that you weren't
7 aware during this period of time that there was a
8 payment problem and that payments were getting
9 held up somewhere between Archbold plant and
10 headquarters?

11 A The only thing I knew of is after that time --
12 and I can tell you that I contacted Tim. I sent
13 out an end-of-the-week report saying that for the
14 fourth week in a row, I didn't get the coal I
15 needed. And then after that, he told me that he
16 received some money.

17 Q Okay.

18 A Dwayne.

19 Q So you talked to him twice?

20 A That's what I said.

21 Q Okay. And then he got that email about we need
22 2,400 tons this month, right?

23 A Which email is that? The one --

24 Q The one that was attached to the Complaint.

25 A After that. Yes, late. Yes.

1 Q Okay. Other than the truckers and Cotton and
2 Dwayne --

3 A Yes.

4 Q -- have you talked to anyone else at Fire Star
5 that you can recall?

6 A I talked to Ronnie Swafford, but that ceased in,
7 I don't know, probably 2019.

8 Q And who is that?

9 A The guy that actually processed the coal and
10 loaded the trucks.

11 Q For Fire Star?

12 A Correct. Yes, sir.

13 Q What do you recall about those talks?

14 A That's how I originally used to order coal until
15 Cotton came in the picture.

16 Q Okay. And so from your perspective, your
17 relationship with Dwayne was good until the end?

18 A As far as I'm concerned, my relationship with
19 Dwayne is good now.

20 Q The relationship between the companies took a hit
21 in or around March in 2021, when there was a
22 belief that there was a quality problem. At
23 least the lab said there was a quality problem.

24 A Correct.

25 Q And as a result of that, payments were withheld,

1 correct?

2 A If you say so.

3 Q You don't know that?

4 A I don't.

5 Q In all of your calls with Dwayne at the time, he
6 never said, "I really need to get paid"?

7 A The only one that really stands out in my mind
8 about money was the one in late May of 2022.

9 Q Okay.

10 A As far as I know, I think Tim, if there was ever
11 a problem with payment, Tim would reach out to
12 Rachel, then Rachel would get ahold of AP
13 whatever in Bethlehem.

14 Q Okay. What was it about the quality problem --
15 if you didn't know about the payment problem, why
16 did you think that delivery slowed down after
17 March of 2021?

18 A I was told that they shut them off until they
19 could get the problem fixed. And that Fire Star
20 bulldozed the pile. And then after they
21 bulldozed the pile, they brought in a new
22 stockpile, did sampling. And then after that,
23 material started coming in, just not at the same
24 rate as before.

25 Q Okay. So you thought back in 2021 that the

1 reason that delivery slowed down was because of a
2 sourcing problem?

3 A No. I thought it was because Michael Wagner told
4 them not to deliver coal for that period. And
5 then at the end of the day, I didn't know.

6 Q Okay.

7 A I mean, I -- I received 100 percent of my coal
8 every year from Fire Star up until March of 2021,
9 and then it went sideways.

10 Q Okay. And I'm asking you why you thought that
11 was.

12 A The sulfur.

13 Q Okay. But you've told us that as far as you
14 know, that was an error, right?

15 MS. RATHKE: I object to the foundation
16 of that.

17 THE WITNESS: Answer?

18 BY MR. HUNTER:

19 Q Yes.

20 MS. RATHKE: If you agree that that's
21 what you told him.

22 BY MR. HUNTER:

23 Q No. You can answer anyway. You can tell me you
24 don't agree, but --

25 MS. RATHKE: Right. That's true.

1 THE WITNESS: I had no idea until I got
2 my instrument fixed.

3 BY MR. HUNTER:

4 Q And then you found it was an error?

5 A That it was not out of spec.

6 Q Okay. And, in fact, your company used every
7 ounce of that coal in its product, right? That
8 coal that it was complaining about and shut Fire
9 Star down for, right?

10 A Yes.

11 Q Okay.

12 MR. HUNTER: That's all I got. Thank
13 you.

14 MS. RATHKE: I got a couple follow ups.

15 DIRECT EXAMINATION OF NEIL MILLER

16 BY MS. RATHKE:

17 Q So the coal that the lab in Illinois tested --

18 A Yes.

19 Q -- came back as out of spec for sulfur; is that
20 correct?

21 A Absolutely.

22 Q The part that you tested did not; is that
23 correct?

24 A That is correct.

25 Q Does that suggest -- I don't know if it does one

1 way or the other, but does that suggest that the
2 entire delivery at issue was in or out of spec --

3 MR. HUNTER: Object to the form.

4 BY MS. RATHKE:

5 Q -- or could it very?

6 MR. HUNTER: Object to the form.

7 You can answer.

8 THE WITNESS: We send a sample out
9 of -- we processed 75 tons a day, and we send in
10 maybe 100 grams. And in that 100 grams,
11 something was out of spec. And it could have
12 been the entire truck load. It could have been
13 three truck loads. It's just we send in the
14 weekly sample, and that particular one, according
15 to the lab test, was hot for sulfur.

16 MS. RATHKE: Thank you. No further.

17 MR. HUNTER: And I just have one
18 follow-up.

19 RECROSS EXAMINATION OF NEIL MILLER

20 BY MR. HUNTER:

21 Q If you all had thought that there was still a
22 problem, you wouldn't have used it in your
23 product, right?

24 A If I -- no, we couldn't have.

25 Q Right.

1 But you did? You did use it in your
2 product?

3 A After it was tested, yes.

4 Q Right.

5 Okay. So you thought that all of that
6 coal was within spec?

7 A It was segregated until we found out that it
8 wasn't.

9 Q But at some point you learned it was and used it
10 in your product. And had you thought it wasn't,
11 you wouldn't have used it in your product,
12 correct?

13 A I did not use it in our product until the lab
14 results got back. I didn't. It was segregated
15 until it was proven to be good. And then after
16 it was proven to be good, I used 100 percent of
17 it.

18 Q Okay.

19 MR. HUNTER: Thanks.

20 MS. RATHKE: Off the record.

21 VIDEO OPERATOR: We're going off the
22 record. The time is 2:40. This concludes
23 today's testimony given by Neil Miller. The
24 total number of media used was one, and it will
25 be retained by Veritext.

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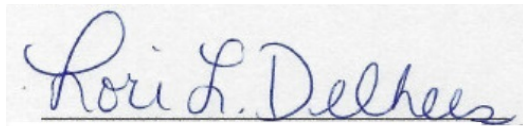
THEREUPON, the deposition concluded at
2:40 p.m.

CERTIFICATE

STATE OF OHIO)
) ss.
COUNTY OF ERIE)

I, Lori L. Delhees, Stenotype Reporter and Notary Public within and for the State aforesaid, duly commissioned and qualified, do hereby certify that the within named NEIL MILLER was by me, before the giving of his deposition, first duly sworn to testify the truth, the whole truth and nothing but the truth in the cause aforesaid; that the deposition as above set forth was reduced to writing by me by means of Computer-Aided Transcription; that the said deposition was taken pursuant to Notice and was completed without adjournment; that I am not a relative or attorney of either party or otherwise interested in the eventual outcome of this action.

IN WITNESS WHEREOF, I have hereunto set my hand and seal of office at Sandusky, Ohio this 8th day of , 2023.May



Lori L. Delhees
Notary Public
P. O. Box 1067
Sandusky, Ohio 44870

My commission expires 11/24/2027

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Federal Rules of Civil Procedure

Rule 30

(e) Review By the Witness; Changes.

(1) Review; Statement of Changes. On request by the deponent or a party before the deposition is completed, the deponent must be allowed 30 days after being notified by the officer that the transcript or recording is available in which:

(A) to review the transcript or recording; and

(B) if there are changes in form or substance, to sign a statement listing the changes and the reasons for making them.

(2) Changes Indicated in the Officer's Certificate. The officer must note in the certificate prescribed by Rule 30(f)(1) whether a review was requested and, if so, must attach any changes the deponent makes during the 30-day period.

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VERITEXT LEGAL SOLUTIONS
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Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

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